

765 KV D/C Transmission Line Jharsyoonh
(Sundargarh) to Raipur.

Total Area:- 71.761 ha.

Raigarh Division area:- 59.179 ha.

Encl:- 1. 1st stage approval letter
17/10/2017
2. 2nd stage approval letter
21/12/2021



भारत सरकार
GOVERNMENT OF INDIA
पर्यावरण, वन एवं जलवायु परिवर्तन मंत्रालय
MINISTRY OF ENVIRONMENT, FORESTS &
CLIMATE CHANGE

Regional Office (WCZ)
Ground Floor, East Wing
New Secretariat Building
Civil Lines, Nagpur - 440001
apccfcentral-ngp-mef@gov.in

Dated: 17th October, 2017

FC-III/CH-21/2017-NGP / 2756

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department,
Mantralaya, Mahanadi Bhavan,
New Raipur (CG).

Sub: Diversion of 71.761 ha of forest land in favour of Odisha Phase-II Generation Project for construction of 765 KV Double Circuit Transmission line from Jharsuguda (Sungargarh- Raipur Pooling Station in Raigarh, Durg, Bilaspur, Jangir Champa, Raigarh and Bemetara Districts in the State of Chhattisgarh.

Sir,

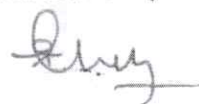
I am directed to refer to the State Government of Chhattisgarh's letter no. F- -53/2017/10-2 dated 11.09.2017 on the above subject seeking prior approval of the Central Government under the Forest (Conservation) Act, 1980 and the Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh's letter no. Bhu-Prabandh/Vidyut/479-154/3047 dated 13.10.2017 forwarding additional information as sought by the Regional Office vide its letter of even number dated 26.09.2017 and to say that the said proposal has been examined by the Regional Empowered Committee constituted under Section - 4 of the Forest (Conservation) Act, 1980.

After careful examination of the proposal of the State Government and on the basis of the approval of the proposal by the Regional Empowered Committee, the Central Government hereby accords 'in-principle' under Section - 2 of the Forest (Conservation) Act, 1980 for diversion of 71.761 ha of forest land in favour of Odisha Phase-II Generation Project for construction of 765 KV Double Circuit Transmission line from Jharsuguda (Sungargarh- Raipur Pooling Station in Raigarh, Durg, Bilaspur, Jangir Champa, Raigarh and Bemetara Districts in the State of Chhattisgarh subject to the fulfilment of the following conditions:

- (i) Legal status of the diverted forest land shall remain unchanged;
- (ii) Compensatory afforestation over degraded forest land, twice in extent to the forest land being diverted, shall be raised and maintained by the State Forest Department at the cost of the User Agency;
- (iii) The land identified for raising compensatory afforestation shall be clearly depicted on Survey of India toposheet of 1:50,000 scale.
- (iv) The User Agency shall transfer the cost of raising and maintaining the compensatory afforestation, at the current wage rate, to the State Forest Department. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- (v) The State Government shall charge the Net Present Value (NPV) of the forest land being diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 28.03.2008, 24.04.2008 and 09.05.2008 in Writ Petition (Civil) No. 202/1995 and the guidelines issued by this Ministry vide its letter No. 5-3/2007-FC dated 05.02.2009 in this regard;
- (vi) At the time of payment of the Net Present Value (NPV) at the then prevailing rate, the User Agency shall furnish an undertaking to pay the additional amount of NPV, if so determined, as per the final decision of the Hon'ble Supreme Court of India;

[Signature]

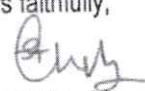
- (vii) All the funds received from the user agency under the project, except the funds realized for regeneration/ demarcation of safety zone, shall be transferred, through e-challan, to Ad-hoc CAMPA in the Saving Bank Account pertaining to the State concerned;
- (viii) The User Agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- (ix) No labour camp shall be established on the forest land;
- (x) The User Agency shall provide firewood preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- (xi) The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- (xii) The forest land shall not be used for any purpose other than that specified in the proposal;
- (xiii) The User Agency shall ensure that because of this project, no damage is caused to the wildlife available in the area;
- (xiv) The User agency, if required, shall undertake comprehensive soil conservation measures at the project cost in consultation with the State Forest Department. A scheme of the same shall be submitted along with the compliance report;
- (xv) No approach road shall be constructed in the forest area for transportation of steel and other material required for the transmission line. As far as possible the User Agency shall use the existing road and the proposed RoW for the transportation of the material and in the event of non-availability of such facilities, the User Agency shall transport material manually without construction of any path;
- (xvi) Width of right of way for the transmission line shall be limited to 67 meters;
- (xvii) The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- (xviii) The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- (xix) The user agency shall install circuit breakers at suitable places besides maintain necessary ground clearance to prevent electrocution of wild animals;
- (xx) The User Agency shall provide suitable birds deflectors, which are to be fixed on upper conductor of transmission line at an interval of 20 meters at sites near to Protected Areas and at locations identified as route of migratory birds to avoid electrocution of birds at project cost;
- (xxi) Felling of trees will be restricted to 4,185 trees only falling in the 10 meters RoW below each conductor on either side. Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;
- (xxii) To minimize the felling for construction of transmission line, user agency shall comply with the following guidelines:
 - (a) Below each conductor, width clearance of 10 mts. would be permitted for carrying the tension stringing equipment. The trees on such strips may be felled but after stringing work is completed, the natural regeneration will be allowed to come up.
 - (b) One outer strip may be left clear to permit maintenance of the transmission line;
 - (c) In the remaining width the right of way felling/pollarding/pruning of trees will be done with the permission of the local forest officer whenever necessary to maintain the electrical clearance, trees shall be allowed to be felled or lopped to the extent required, for preventing electrical hazards by maintaining the minimum 9.0 meter clearance between conductors and trees. The sag and swing of the conductors are to be kept in view while working out the minimum clearance mentioned as above;
 - (d) User agency in consultation with the State Forest Department prepare a detailed scheme for creation and maintenance of plantation of dwarf species (preferably medicinal plants)



- in right of way under the transmission line, and provide funds for execution of the said scheme to the State Forest Department; and
- (e) In case a portion of the transmission lines to be constructed is located in hilly areas, where adequate clearance is already available, trees shall not be cut;
- (xxiii) The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project and shall submit a scheme along with Stage-I compliance;
- (xxiv) The State Government shall submit complete compliance of Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 before Stage-II approval as the proceedings of the Sub-Divisional Level Committee (s) with respect to Bilaspur, Janjgir Champa and Bemetara Districts have not been submitted along with the compliance.
- (xxv) The User Agency shall submit six monthly self-compliance reports as on 1st January and 1st July of every year to this office as well as to the Nodal Officer of the State;
- (xxvi) The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year;
- (xxvii) Any other condition that the concerned Regional Office of this Ministry may stipulate, from time to time, in the interest of conservation, protection and development of forests & wildlife;
- (xxviii) The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project; and
- (xxix) The working permission, if considered by the State Government in accordance with the MoEF&CC's Guidelines dated 28.08.2015, should be accorded only after ensuring complete compliance of Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 as proceedings of the Sub-Divisional Level Committee have not been submitted along with the compliance report as per clause (a) of Form-I annexed to the MoEF&CC's advisory dated 5.07.2013.

After receipt of a report on the compliance of conditions no (iii), (iv), (v), (vii), (xiv), (xxii)(d), (xxiii), (xxiv) and undertakings, duly authenticated by the competent authority in the State Government, in respect of all other conditions, from the State Government, formal approval will be considered in this regard under Section-2 of the Forest (Conservation) Act, 1980.

Yours faithfully,


(Charan Jeet Singh)
Scientist 'C'

Copy to:

1. The PCCF, Government of Chhattisgarh, Raipur
2. The Nodal Officer FCA), O/o of the PCCF, Government of Chhattisgarh, Raipur.
3. The Director, ROHQ, MoEF&CC, Indira Paryavaran Bhawan, Aliganj, Jorbagh Road, New Delhi
4. User Agency.
5. Guard File.

— 501 —
(Charan Jeet Singh)
Scientist 'C'

भारत सरकार
पर्यावरण वन एवं जलवायु परिवर्तन मंत्रालय
एकीकृत क्षेत्रीय कार्यालय,
अरण्य भवन, नार्थ ब्लॉक,
सेक्टर -19, नवा रायपुर, अटल नगर
छत्तीसगढ़ - 492002
ईमेल - iro.raipur-mefcc@gov.in



GOVERNMENT OF INDIA
MINISTRY OF ENVIRONMENT, FORESTS &
CLIMATE CHANGE
INTEGRATED REGIONAL OFFICE
ARANYA BHAWAN, NORTH BLOCK, SECTOR-19,
NAVA RAIPUR, ATAL NAGAR, CHHATTISGARH - 492002
Email - iro.raipur-mefcc@gov.in

Date: 21/12/2021

F.No. FC-III/CH-21/2017/433

To,

Principal Secretary (Forests),
Government of Chhattisgarh,
Forest Department, Mantralaya,
Mahanadi Bhavan, Nava Raipur, Atal Nagar (CG).

Sub: Diversion of 71.761 ha of Forest land in favour of Odisha Phase-II Generation Project for Construction of 765 KV Double Circuit Transmission line from Jharsuguda Sundargarh-Raipur Pooling Station in Raigarh, Durg, Bilaspur, Janjgir Champa, Raigarh and Bemetara District in the State of Chhattisgarh.

Sir,

Kindly refer to the State Government of Chhattisgarh vide letter no. F-5-53/2017/10-2 dated 11.09.2017, on the above subject seeking prior approval of the Central Government, in accordance with Section-2 of the Forest (Conservation) Act, 1980. It is to say that after examination of the proposal of the State Government, 'In-Principle' approval was accorded by the Central Government vide letter of even number dated 17.10.2017. Now, the State Government of Chhattisgarh, vide letter no. krmank/ F-5-53/2017/10-2 dated 09.11.2021 and the Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh vide letter क्र./भू-प्रबंध/ विद्युत/479-154/2670 dated 25.10.2021, additional information as desired by Regional Office letter of even number dated 29.06.2021, has submitted a report on the compliance of conditions stipulated in the 'In-Principle' approval and requested the Central Government to grant final approval to the proposal.

In this connection, It is informed that on the basis of compliance report submitted by the State Government of Chhattisgarh vide letter क्र./भू-प्रबंध/ विद्युत/479-154/2670 dated 25.10.2021, the Central Government hereby accords **Final Approval** under Section - 2 of the Forest (Conservation) Act, 1980 for diversion of 71.761 ha of Forest land in favour of Odisha Phase-II Generation Project for Construction of 765 KV Double Circuit Transmission line from Jharsuguda Sundargarh-Raipur Pooling Station in Raigarh, Durg, Bilaspur, Janjgir Champa, Raigarh and Bemetara District in the State of Chhattisgarh subject to the fulfilment of the following conditions:

- i. Legal status of the diverted forest land shall remain unchanged;
- ii. **Compensatory afforestation**
 - a) Compensatory afforestation shall be taken up by the Forest Department over 144.181 ha over double (Orange Forest Land) degraded forest land (Compartment / Khasra No. 940, 1, 2, 3/4, 3/1, 6/1 KA, 2_1, 774/1, 775/1, 779, 781, 156/1 and 156/2 in Bilaspur Forest Division, Tehsil- Bilaspur, District- Bilaspur) at the cost of the user agency. As far as possible, a mixture of local indigenous species shall be planted and monoculture of any species may be avoided.
 - b) The non-forest land which has been transferred and mutated in favour of the State Forest Department for the purpose of compensatory afforestation shall be declared as Reserved Forest under Section-4 or Protected Forest under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the State Forest Act. The Nodal Officer, Forest (Conservation) Act, 1980 may report compliance within a period of six (6) months from the date of grant of final approval and send a copy of the original notification declaring the non-forest land under Section 4 or Section 29 of the Indian Forest Act, 1927, or under

the relevant section of the State Forest Act as the case may be, to this office for information and record;

- iii. Compensatory afforestation, at the current wage rate, shall be raised by the State Forest Department in accordance with the CA scheme. The scheme may include appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- iv. The State Government shall charge the Net Present Value (NPV) for the 71.761 ha forest area to be diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 30/10/2002, 01/08/2003, 28/03/2008, 24/04/2008 and 09/05/2008 in IA No. 566 in WP (C) No. 202/1995 and as per the guidelines issued by the Ministry vide letters No. 5-1/1998-FC (Pt.II) dated 18/09/2003, as well as letter No. 5-2/2006-FC dated 03/10/2006 and 5-3/2007-FC dated 05/02/2009 in this regard;
- v. Additional amount of the NPV of the diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged by the State Government from the User Agency. The User Agency shall furnish an undertaking to this effect;
- vi. All the funds received from the user agency under the project shall be transferred/ deposited to CAMPA fund only through e-portal;
- vii. The complete compliance of the FRA, 2006 shall be ensured by way of prescribed certificate from the concerned District Collector;
- viii. No labour camp shall be established on the forest land;
- ix. The User Agency shall provide firewood preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- x. The boundary of the diverted forest land shall be demarcated on ground at the project cost, by erecting four feet high reinforced cement concrete pillars, each inscribed with its serial number, forward and back bearing and distance from pillar to pillar;
- xi. The forest land shall not be used for any purpose other than that specified in the proposal;
- xii. The User Agency shall ensure that because of this project, no damage is caused to the wildlife available in the area;
- xiii. No approach road shall be constructed in the forest area for transportation of steel and other material required for the transmission line. As far as possible the User Agency shall use the existing road and the proposed RoW for the transportation of the material and in the event of non-availability of such facilities, the User Agency shall transport material manually without construction of any path;
- xiv. Width of right of way for the transmission line shall be limited to 67 meters;
- xv. The layout plan of the proposal shall not be changed without the prior approval of the Central Government.
- xvi. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior approval of the Central Government;
- xvii. The user agency shall install circuit breakers at suitable places besides maintain necessary ground clearance to prevent electrocution of wild animals;
- xviii. The user agency shall provide suitable birds deflectors, which are to be fixed on upper conductor of transmission line at an interval of 20 meters at sites near to protected areas and applications identified as route of migratory birds to avoid electrocution of birds at project cost;
- xix. Felling of trees will be restricted to 4,185 trees only falling in the 10 meters RoW below each conductor on either side. Any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;
- xx. To minimize the felling for construction of transmission line, user agency shall comply with the following guidelines:
 - (a) Below each conductor, width clearance of 10 meters would be permitted for carrying the tension stringing equipment. The trees on such strips may be felled but after stringing work is completed, the natural regeneration will be allowed to come up.

- (b) One outer strip may be left clear to permit maintenance of the transmission line;
 - (c) In the remaining width the right of way felling/pollarding/pruning of trees will be done with the permission of the local forest officer whenever necessary to maintain the electrical clearance, trees shall be allowed to be felled or lopped to the extent required, for preventing electrical hazards by maintaining the minimum 9.0 meter clearance between conductors and trees. The sag and swing of the conductors are to be kept in view while working out the minimum clearance mentioned as above;
 - (d) User agency in consultation with the State Forest Department shall implement approved scheme for creation and maintenance of plantation of dwarf species (preferably medicinal plants) in right of way under the transmission line, from funds already provided for the purpose; and
 - (e) In case a portion of the transmission lines to be constructed is located in hilly areas, where adequate clearance is already available, trees shall not be cut;
- xxi. The user agency in consultation with the State Government shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- xxii. The User Agency shall submit six monthly self-compliance reports as on 1st January and 1st July of every year to this office as well as to the Nodal Officer of the State;
- xxiii. The State Government shall monitor compliance of conditions of Forest Clearance and shall submit in this regard yearly report as on 31st December of every year;
- xxiv. The User Agency and the State Government shall ensure compliance to provisions of the all Acts, Rules, Regulations and Guidelines, for the time being in force, as applicable to the project;
- xxv. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as per the MoEF&CC Guideline F. No. 11-42/2017-FC dt 29/01/2018;
- xxvi. Any other condition that the Ministry of Environment, Forests & Climate Change may stipulate from time to time in the interest of conservation, protection and development of forests & wildlife;
- xxvii. The compliance report shall be uploaded on e-portal (<https://parivesh.nic.in/>).

Yours faithfully,

Chaturbhuj
21/12/21
Chaturbhuj Behera
Inspector General of Forests

Copy to:

1. The PCCF & HoFF, Government of Chhattisgarh, Sector-19, Aranya Bhavan, Atal Nagar, Naya Raipur (CG).
2. The Addl. PCCF & Nodal Officer (FCA), Government of Chhattisgarh, Sector-19, Aranya Bhavan, Atal Nagar, Naya Raipur (CG).
3. User Agency.
4. Guard File.

Chaturbhuj
21/12/21
Chaturbhuj Behera
Inspector General of Forests